

Aerial Imagery LLC - Terms and Conditions

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Effective Date: February 15, 2026 Last Updated: February 15, 2026

1. Services and Scope

Aerial Imagery LLC (“Company,” “we,” “us”) provides real estate photography, videography, virtual tours, virtual staging, floor plans, aerial/drone photography, property websites, and related marketing services (“Services”) to real estate agents, brokers, property managers, and commercial clients (“Client,” “you”).

By placing an order through our ordering form, you agree to these Terms and Conditions.

2. Packages and Pricing

- **Essential Package (\$349):** 20-30 HDR photos, Zillow 3D Home Tour, 24-hour turnaround. Media delivery only.
- **Pro Package (\$999):** Everything in Essential, plus 3D Matterport Virtual Tour, Video Walkthrough, 2D Floor Plan, dedicated property website with analytics, buyer lead capture, seller reports, and full marketing portal access.
- **Vacant Package (\$425):** 15-25 HDR photos, virtual staging (up to 5 rooms), Matterport Capture with 2D Floor Plan, property website with analytics, lead capture, seller reports, and 48-hour turnaround.
- **Aerial Photography Add-on (\$175):** 8-10 aerial/drone HDR photos. Available with any package or a la carte.
- **A La Carte Services:** Individual services available at listed prices. 10% discount applied automatically when ordering 3 or more a la carte services for one listing.

Prices are subject to change. Package pricing applies to standard residential properties within our service area. Additional charges may apply for properties requiring extended travel, excessive square footage, or special access arrangements.

3. Service Area

We serve the San Francisco Bay Area including San Francisco, the Peninsula, South Bay, North Bay, and East Bay. A travel surcharge of \$50 applies to properties outside a 30-mile radius of San Mateo, CA.

4. Scheduling and Access

- Client is responsible for ensuring property access at the scheduled time, including lockbox codes, gate access, and any HOA or building management approvals.
- Properties must be photo-ready at the time of the shoot. We are not responsible for cleaning, staging (unless virtual staging is ordered), or property preparation.
- If the property is not accessible or not ready at the scheduled time, a \$99 cancellation/reschedule fee applies.

5. Cancellation and Rescheduling

- Cancellations or reschedules made **more than 24 hours** before the appointment: no charge.
- Cancellations or reschedules made **less than 24 hours** before the appointment: \$99 fee.
- No-shows: full service amount is charged.

6. Turnaround and Delivery

- **Essential Package:** 24-hour turnaround from shoot completion.
- **Pro Package:** 24-48 hour turnaround from shoot completion.
- **Vacant Package:** 48-hour turnaround from shoot completion (virtual staging processing time).
- Turnaround times are business days and begin after the shoot is completed. Rush delivery may be available upon request for an additional fee.
- Deliverables are provided via digital download, property website, or as otherwise specified.

7. Payment

- Payment is due at the time of ordering unless other arrangements have been made.
- We accept PayPal, credit cards, debit cards, Apple Pay, Venmo, and Zelle.
- For recurring clients with approved accounts, net-15 invoicing may be available.
- Late payments may incur a 1.5% monthly finance charge.

8. Intellectual Property and Usage Rights

- Upon full payment, Client receives a **non-exclusive, perpetual license** to use all delivered media for the purpose of marketing and selling the specific property photographed.
- Aerial Imagery LLC retains all copyrights and ownership of the original media.
- We reserve the right to use delivered media in our portfolio, website, social media, and marketing materials unless Client requests otherwise in writing.
- Media may not be resold, sublicensed, or used for purposes other than marketing the specific property without written permission.
- Virtual staging images must be clearly identified as “virtually staged” in any listing where they appear, per MLS rules and California real estate regulations.

9. Property Websites and Analytics

- Property websites included in Pro and Vacant packages remain active for **12 months** from creation date.
- Website analytics, lead capture data, and seller reports are available through the marketing portal during the active period.
- Custom domain registration (\$14.99) is optional and subject to domain availability.
- We are not responsible for third-party platform outages or changes that may affect website functionality.

10. Drone/Aerial Photography

- All aerial photography is conducted by FAA Part 107 certified pilots in compliance with federal, state, and local regulations.
- Aerial photography is subject to weather conditions, airspace restrictions, and local ordinances. If conditions prevent safe flight operations, the aerial portion will be rescheduled at no additional charge.
- Client is responsible for disclosing any known airspace restrictions, TFRs (Temporary Flight Restrictions), or HOA drone policies at the property location.

11. Virtual Staging

- Virtual staging is performed by third-party partners and is subject to their processing times.
- Up to one round of revisions is included per staged image. Additional revisions may incur fees.
- Virtually staged images are clearly watermarked or labeled per MLS and California DRE guidelines. Client agrees to maintain “virtually staged” disclosures in all listings.

12. 3D Virtual Tours (Matterport)

- Matterport 3D tours are hosted on the Matterport platform and are subject to Matterport’s terms of service and availability.

- Tours remain active as long as our Matterport account maintains the space. We make reasonable efforts to maintain all tours but cannot guarantee indefinite hosting.
- Zillow 3D Home Tours are published to Zillow's platform and are subject to Zillow's terms and availability.

13. Limitation of Liability

- Our total liability for any claim related to Services shall not exceed the amount paid by Client for the specific service giving rise to the claim.
- We are not liable for indirect, incidental, consequential, or punitive damages, including lost profits or lost sales.
- We are not responsible for delays caused by weather, property access issues, equipment failure, third-party platform outages, or circumstances beyond our reasonable control.

14. Indemnification

Client agrees to indemnify and hold harmless Aerial Imagery LLC, its owners, employees, and contractors from any claims, damages, or expenses arising from: (a) Client's use of delivered media, (b) misrepresentation of virtually staged images, (c) property access issues, or (d) violation of MLS rules or real estate regulations in connection with the use of our deliverables.

15. Privacy and Data

- We collect and process personal information in accordance with our Privacy Policy at aimagery.com/privacy.
- Property photos and media may capture personal items, neighboring properties, or individuals. Client is responsible for ensuring the property is prepared appropriately before the shoot.
- Lead capture data collected through property websites belongs to the Client and is processed in accordance with California Consumer Privacy Act (CCPA) requirements.

16. Dispute Resolution

Any disputes arising from these Terms shall be governed by the laws of the State of California. Disputes shall first be addressed through good-faith negotiation. If unresolved, disputes shall be submitted to binding arbitration in San Mateo County, California, under the rules of the American Arbitration Association.

17. Modifications

We reserve the right to update these Terms at any time. Material changes will be communicated to active clients via email. Continued use of our Services after notification constitutes acceptance of updated Terms.

18. Contact

Aerial Imagery LLC Email: monday@aimagery.com Phone: (650) 437-7630 Web: aimagery.com

By placing an order with Aerial Imagery LLC, you acknowledge that you have read, understood, and agree to these Terms and Conditions.